

defendants' motion fails to demonstrate any reason this court would lack subject matter jurisdiction.

Defendants in the alternate ask the court to dismiss or stay this action as California an inconvenient forum. "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." (Code Civ. Proc., § 410.30, subd. (a).) The burden of proof is on the party asserting forum non conveniens. (*Fox Factory, Inc. v. Super. Court* (2017) 11 Cal.App.5th 197, 204.) When analyzing such a motion, "[t]he court 'must first determine whether the alternate forum is a "suitable" place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California.'" (*Id.*, at p. 203, quoting *Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751.)

Here, it appears Tennessee is a suitable alternate forum for trial in this action, as all defendants by way of motion or by way of joinder agree to the forum. As to the private factors, while some of the witnesses would be located in Tennessee, other witnesses would be in California. Two of the defendants reside in California whereas plaintiff is located in Tennessee. Defendants do not submit evidence as to where the other entity defendants are located. In light of the information presented, the private factors weigh slightly in favor of California. The public factors, however, weigh heavily in favor of California. California has a strong interest in regulating the alleged wrongdoing of insurance brokers operating within its borders. California also has an interest in protecting consumers under the Unfair Competition Law. Defendants fall short of their burden of showing of showing the interests of justice would be served if the action were heard in a different forum.

Based on the foregoing, the motion to dismiss for lack of subject matter jurisdiction is denied and the alternative motion to dismiss or stay the action due to forum non conveniens is denied.

14. S-CV-0056953 Nickell, Andrew v. PG&E

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise

The petition is granted as prayed. After careful consideration of the petition and the supporting attachments, the court finds the settlement is in the best interest of the minor. If oral argument is requested, the appearance of the minor at the hearing is excused.